

2021 P L C (C.S.) 1377

[Lahore High Court]

Before Jawad Hassan, J

MUHAMMAD NASIR

Versus

CHAIRMAN BANK OF PUNJAB

Writ Petition No.38586 of 2021, decided on 21st June, 2021.

Civil service---

---Compulsory retirement---Opportunity of personal hearing---Scope---Allegation against the employee (cash-officer) of a Province owned Bank was of embezzlement of funds, gross negligence in duties, etc.---Contention of the petitioner-cash officer was that he had informed the concerned department regarding the matter and he had deposited the disputed amount from his own pocket---Validity---Record revealed that the petitioner while joining inquiry proceedings did not object to the inquiry officer that inquiry was incomplete or it was not satisfactory---Petitioner, in his reply to show-cause notice, had admitted that he had not been able to execute his responsibilities in accordance with Bank SOPs---Although, from said admission of the petitioner, there was no need of conducting regular inquiry yet the Bank adopted proper procedure and provided him an opportunity of personal hearing---Petitioner did everything intentionally, keenly and willingly because his 26 years job career was long enough to provide knowledge of law and rules of maintenance of public fund of which he was made custodian---Bank after analyzing the material on record had even found the contention/plea of the petitioner as gross misconduct resulting in a great loss to the reputation of Bank---Petitioner was afforded full opportunity of personal hearing as well as right of defence but he could not counter the charges/allegations through cogent, convincing and confidence inspiring evidence, which otherwise had been proved---Petitioner could not shake the credibility of inquiry---Constitutional petition was dismissed, in circumstances.

Federation of Pakistan through Secretary, Ministry of Law and Justice Divisions, Islamabad v. Mamoon Ahmed Malik 2020 SCMR 1154 and Inam-ul-Haq v. Allied Bank Limited and 4 others 2010 PLC 215 ref.

Saleem Akhtar Sheikh for Petitioner.

ORDER

JAWAD HASSAN, J.---Through this petition under Article 199 of the Constitution of Islamic Republic of Pakistan, 1973 (the "Constitution"), the Petitioner has prayed to set aside quasi-judicial order passed by the Respondent pursuant to directions issued by this

Court in W.P.No.50911 of 2020 dated 15.10.2020 whereby appeal of the Petitioner has been rejected. He has also challenged his earlier dismissal order dated 10.01.2019.

2. Facts of the case as per petition are that during performance of duties as Cash Officer with the Respondent, the Petitioner was served with show-cause notice dated 07.11.2018 on the allegation of embezzlement etc, however, as per his stance, he was not provided an opportunity of hearing to present his version and ultimately, order for compulsory retirement was passed on 10.01.2019. Against aforesaid order, he preferred departmental appeal before the Respondent, non-decision thereof prompted him to approach this Court and sought directions pursuant to which the impugned order was passed. Hence this petition.

3. Learned counsel for the Petitioner inter alia submitted that the impugned orders are against the law and facts; that while passing impugned orders, due process was not adopted by the Respondent; that the penalty of compulsory retirement is against the evidence available on record; that while passing impugned order, the Respondent has disobeyed the directions issued on 15.10.2020 as such it is liable to be set aside.

4. Heard. Record perused.

5. The counsel for the Petitioner has mainly emphasizes that while passing impugned compulsory retirement order, proper procedure has not been adopted by the Respondent. It appears from the record that the Petitioner was a Cash Officer in the Respondent-Bank and he was served with show-cause notice containing allegations of embezzlement of funds, gross negligence in duties, violations of Bank's Rules, Procedure and Instructions, Criminal Breach of Trust and Concealment of Facts. He joined the inquiry proceedings and did not object to the inquiry officer that inquiry is incomplete or it is not satisfactory. In his reply to show-cause notice, he admitted "I admit that I have not been able to execute my responsibilities in accordance with Bank SOPs". From the above-said admission, although there was no need of conducting regular inquiry as per judgment passed by the Hon'ble Supreme Court of Pakistan in "Federation of Pakistan through Secretary, Ministry of Law and Justice Divisions, Islamabad v. Mamoon Ahmed Malik" (2020 SCMR 1154) yet the Respondent adopted proper procedure and provided the Petitioner an opportunity of hearing through an independent inquiry officer and to defend himself as a result whereof the impugned order was passed. It evinces from the impugned order dated 23.11.2020 that the matter with regard to embezzlement was referred to Audit Department for thorough probe and according to its findings, the Petitioner in connivance with other embezzled an aggregate amount of Rs.4,88,858/- and for this purpose different GL's (General Ledgers) of the Branch were debited. In addition, the excess cash found over the counter was pocketed in deviation to the rules as the same were not accounted for in sundry accounts. It was observed that the Petitioner did everything intentionally, knowingly and willingly because his 26 years job career was long enough to provide knowledge of law and rules of maintenance of public fund of which he was made custodian. Furthermore, the Respondent, after analyzing the material available on record found the plea of the Petitioner not reliable and not proved as mere telling the matters of embezzlement to the DBOM who appears to be equally involved does not provide him room for his criminal negligence or not registering excess fund in the relevant ledger available in the Bank for such purposes. The Respondent in the impugned

order further observed that "his act of redepositing the amount from his own pocket proves that it was in his personal use along with co-beneficiary for over a period of six months. Such conduct if left unpunished would obviously result in a great loss to the reputation of the institution which has been established on the trust of the account holders". It is a gross misconduct of the Petitioner which resulted defame the reputation of the bank which is almost important for the commercial establishment. Moreover, the Petitioner was afforded full opportunity of personal hearing as well as right of defence but he could not counter the charges/allegations through cogent, convincing and confidence inspiring evidence which otherwise had been proved. Reliance is placed on "Inam-ul-Haq v. Allied Bank Limited and 4 others" (2010 PLC 215).

6. During the course of arguments, learned counsel for the Petitioner has pointed out that the Respondent has not dealt with his second prayer made in his application which was with regard to pension, gratuity etc. Suffice it to say that the Respondent in the impugned order observed as under:

"In fact, the competent authority has already been lenient in retiring him compulsorily and not terminating. This way he has become entitled to the benefits which accrued to him during his 26 years of service.

11. Under the circumstances, the competent authority has already been benevolent as it has saved the family of the wrong doer from various hardships".

7. From bare reading of above said observation, it is quite clear that the Respondent has protected his pensionary benefits accrued to him throughout his career and compulsory retired him from service rather than to terminate him. It is noted that impugned order was passed on 23.11.2020 but the Petitioner has neither made any effort for grant of pensionary benefits nor brought on record anything to show that he ever approached the Respondent for grant of such benefits. The Petitioner may approach the Respondent for grant of pensionary benefits etc as observed in the impugned order.

8. In this view of the situation, the charges/allegations, levelled against the Petitioner have been proved through proper inquiry, credibility of which could not be shaken by the Petitioner, I am not inclined to interfere with the impugned orders which otherwise have been passed aptly. Resultantly, the instant petition stands dismissed in limine.